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**Electronically Filed
by Superior Court of CA,
County of Santa Clara,
on 4/3/2026 5:30 PM
Reviewed By: C. Roman
Case #24CV428595
Envelope: 23242467**

8 **IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA**
9 **IN AND FOR THE COUNTY OF SANTA CLARA**

10 CARLOS ROMALDO PAXTO CHEN, *an*
11 *individual*; OSCAR CRUZ GABRIEL, *an*
12 *individual*,

13 Plaintiffs,

14 v.

15 YOSHI JAPANESE CUISINE INC, *a*
16 *California Corporation*; YOSHI SUSHI &
17 GRILL LLC, *a California limited liability*
18 *company*; YOSHI3 LLC, *a California*
19 *limited liability company*; JIN YAO
20 HUANG, *an individual*; and DOES 1
21 through 20, inclusive,

22 Defendants.

Case No. 24CV428595

**NOTICE OF MOTION TO CORRECT
MISSPELLING OF PLAINTIFF'S NAME
IN COMPLAINT**

DATE: NOVEMBER 19, 2026
TIME: 1:30 PM
DEPT: 22

23 TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

24 PLEASE TAKE NOTICE that on November 19, 2026, at 1:30 PM, or as soon thereafter as
25 the matter may be heard, in Department 22 of the above-entitled Court, located at 161 North First
26 Street, Santa Clara, CA 95113, Plaintiff CARLOS ROMALDO PAXTO CHAN will and hereby
27 does move this Court, pursuant to Code of Civil Procedure § 473(a)(1), for an order permitting
28 Plaintiff to amend the Complaint to correct the misspelling of Plaintiff's name from "CARLOS
ROMALDO PAXTO CHEN" to "CARLOS ROMALDO PAXTO CHAN[.]"

Plaintiff brings this motion on the grounds that the misspelling of Plaintiff's name in the
Complaint constitutes a clerical error, does not change the nature of any claim alleged, causes no
prejudice to any party, and should be corrected in the interest of justice and to ensure the accurate

1 identification of the real party in interest.

2 This Motion is based on this Notice of Motion, the accompanying Memorandum of Points
3 and Authorities, the Declaration of Thomas P. Skinner, all pleadings and records on file in this
4 action, and such further oral and documentary evidence as the Court may consider at the time of
5 the hearing.

6
7 Dated: April 3, 2026

SKINNER LAW GROUP, APC

8 By: /s/ T.P. Skinner

9 T.P. SKINNER

Attorney for Plaintiff

PROOF OF SERVICE
STATE OF CALIFORNIA, SANTA CLARA COUNTY

I, Peter Wilson, am over the age of eighteen years and not a party to the within-entitled action; my business address is 1654 The Alameda, Suite 100, San Jose, CA 95126.

On 04/03/2026, I served the within;

1. DECLARATION OF THOMAS P. SKINNER IN SUPPORT OF MOTION TO CORRECT MISSPELLING OF PLAINTIFF'S NAME IN COMPLAINT;
2. MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION TO CORRECT MISSPELLING OF PLAINTIFF'S NAME IN COMPLAINT; and
3. NOTICE OF MOTION TO CORRECT MISSPELLING OF PLAINTIFF'S NAME IN COMPLAINT

(X) On 04/03/2026, by use of electronic "email" address peter@skinnerlawgroupca.com, I served the above-named document[s] on the party[ies] named below, in the above referenced matter, by transmitting by electronic mail to each party's electronic "email" address listed below:

Tyler M. Paetkau

tyler@paetkaulg.com

Kathy Huynh

kathy@paetkaulg.com

Liliane Lamotte

liliane@paetkaulg.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on 04/03/2026 at Dublin, California.

/s/ Peter Wilson

Peter Wilson